

26TRCV00153 26TRCV00153

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C07%2F01%2F2026

Source SHA-256: ef256a1381b1139ced870de4fa628a23d6e725fdc0f2de8171a383627f8d947e

Case Number: 26TRCV00153 Hearing Date: July 1, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CASSIDY

CHAVEZ & TREVOR FIELD,

Plaintiff,

Case No.:

26TRCV00153

vs.

[Tentative]

Sustained

KIA

AMERICA, INC., a California Corporation, and DOES 1 through 10, inclusive.

Defendants.

Hearing

Date: July
1, 2026

Moving Parties: Defendant Kia America

Responding Party: Plaintiffs Cassidy Chavez and Trevor Field

HEARING: Demurrer

The
Court considered the moving, opposition, and reply papers.

RULING

The Court sustains
the Demurrer with leave to amend.

BACKGROUND

On
January 15, 2026, Plaintiffs Cassidy
Chavez and Trevor Field filed the Complaint alleging a single cause of action
for violation of the Song-Beverly Act.

On February 20, 2026, Defendant filed
the Demurrer.

On March 12, 2026, Plaintiff filed
the Opposition.

On March 18, 2026, Defendant filed
the Reply.

LEGAL STANDARD

A demurrer can be
used only to challenge defects that appear on the face of the pleading under
attack or from matters outside the pleading that are judicially noticeable. (Blank
v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint
need only allege facts sufficient to state a cause of action; each evidentiary

fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

Defendant contacted Plaintiff regarding the Demurrer on February 18, 2026. Therefore, the Court finds that Defendant has satisfied the meet and confer requirement.

Cause of Actions 1 – Violations of Express and Implied Warranty under the Song-Beverly Act.

Defendant

argues the Complaint is uncertain and deficient because it improperly combines two distinct transactions, a lease and a purchase, into a single set of

allegations. Each transaction gives rise to separate rights, obligations, statutes of limitations, and potential causes of action, including different remedies under the Song-Beverly Act. Defendant contends Plaintiffs must plead separate causes of action for the lease and the purchase, as combining them creates uncertainty regarding liability, damages, and timeliness.

Defendant further argues that the Complaint fails to plead statutory claims with the required specificity. Because Song-Beverly claims are statutory, Plaintiffs must allege detailed facts supporting each element, including the specific defects, when they manifested, how they substantially impaired the vehicle, repair attempts, and failure to repair or replace. Instead, Defendant contends Plaintiffs merely recite conclusory statutory language without factual support, fail to identify whether the vehicle was new or used at purchase, and do not specify key details such as the seller or repair history.

Accordingly, Defendant asserts the Complaint is uncertain, lacks particularity, and fails to state sufficient facts to support a viable claim, and therefore the Demurrer should be sustained.

In opposition, Plaintiff argues the complaint sufficiently alleges a valid Song-Beverly Act claim and is not uncertain. First, Plaintiff contends they have pleaded all required ultimate facts for a Song-Beverly claim, including purchase of the vehicle, existence of a warranty, defects substantially impairing use, repair attempts, failure to repair, and failure to repurchase or replace. These allegations are sufficient to put Defendant on notice of the claim, especially given Defendant's familiarity with such cases and access to its own service records. Second, Plaintiff argues the complaint is not uncertain because Defendant is already aware of the relevant facts, and a demurrer for uncertainty cannot be used to demand evidentiary detail. The allegations adequately apprise Defendant of the issues, and greater specificity is not required at the pleading stage. Third, Plaintiff contends the lease-then-purchase structure does not render the claim uncertain or bar relief. Defendant's argument regarding "used" vehicles does not apply because Plaintiffs continuously possessed the vehicle, and a change in financing from lease to purchase does not transform it into a used vehicle or eliminate statutory protections. Finally, Plaintiff argues there is only one statutory cause of action, not separate claims for lease and purchase. The Act provides a single remedy for failure to repurchase or replace a defective vehicle, and the statute expressly grants

lessees the same rights as buyers.

The

Song-Beverly Act's express warranty provisions apply only to new motor vehicles, not to used vehicles purchased with the remaining balance of a manufacturer's original warranty. (See, *Rodriguez*, supra, 17 Cal.5th 189, 196 ["a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale"].) While Plaintiff argues that *Rodriguez* is not controlling because "A mere change in the financial arrangements for acquisition of a car, between initial lease payments and later payments toward purchase for the residual value under that same lease, is merely a superficial change in financing," Plaintiff has provided no authority for this argument. Consequently, because whether the cause of action is brought under the lease or the later purchase may be dispositive, the Court finds that the first cause of action is uncertain. Furthermore, the Court finds that Defendant has not alleged any nonconformity, as the Complaint merely states that "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period," and a demurrer does not admit conclusions of fact or law. (Complaint ¶ 17; *Daar*, supra, 67 Cal.2d 695, 713.)

Therefore, the Court sustains the Demurrer with leave to amend.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CASSIDY CHAVEZ & TREVOR FIELD,

Plaintiff,

Case No.:

26TRCV00153

vs.

[Tentative] Granted in part

KIA AMERICA, INC., a California Corporation, and DOES 1 through 10, inclusive.

Defendants.

Hearing Date: July 1, 2026

Moving Parties: Defendant Kia America

Responding Party: Plaintiffs Cassidy Chavez and Trevor Field

HEARING: Motion to Compel Compliance

The Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel Compliance in part and imposes sanctions on Plaintiff in the amount of \$1,500.

BACKGROUND

On January 15, 2026, Plaintiffs Cassidy Chavez and Trevor Field filed the Complaint alleging a single cause of action for violation of the Song-Beverly Act.

On May 1, 2026, Defendant filed the Motion to Compel Compliance.

On June 17, 2026, Plaintiff filed the Opposition.

On June 23, 2026, Defendant filed the Reply.

LEGAL STANDARD

With the passage of Assembly Bill 1755 in 2024, the California Legislature enacted Code of Civil Procedure section 871.20, et seq., which (among other things) added requirements for certain lemon law actions. (Code Civ. Proc., § 871.20, subd. (a) [“Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision

(b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty”]; subd. (b) [“This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle”].)¿

Relevantly, “within 120 days after the filing of the answer or other responsive pleading, all parties have the¿right¿to conduct initial depositions, each not to exceed two hours, of the following¿deponents: (1) The Plaintiff[¿] and (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf.” (Code Civ. Proc., § 871.26, subd. (c)(1)-(2) [italics added].)¿¿¿¿

Unless good cause is shown for failing to comply with Code Civ. Proc. § 871.26(c), “a court¿shall¿impose sanctions as follows . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney . . . paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(2) [italics added].)¿¿¿

DISCUSSION

Defendant requests that the Court impose monetary sanctions on Plaintiff and compel Plaintiff to sit for deposition for failing to allow Defendant to depose Plaintiff under Code of Civil Procedure section 871.26.

Under Code of Civil Procedure section 871.26, a court must impose monetary sanctions on a party who fails to comply with the mandatory depositions for Song-Beverly Act cases. (Code Civ. Proc. § 871.26 subd. (c); Code Civ. Proc. § 871.26. subd. (j).) Here, Plaintiff failed to appear at Defendant's deposition on April 27, 2026, or the rescheduled deposition on June 5, 2026. The parties then again rescheduled the deposition after the instant motion was filed, to June 26, 2026. However, June 26, 2026, is after the 120-day window required by Code of Civil Procedure section 871.26 subdivision (c). Thus, sanctions are mandatory. However, as the parties have scheduled a deposition, the Court sees no need to compel Plaintiff's attendance at the scheduled deposition.

Therefore, the Court grants the Motion to Compel Compliance in part and imposes sanctions on Plaintiff in the amount of \$1,500.